

Master Services Agreement

Apex Industries, Inc. ↔ Atlas Logistics LLC · effective 2026-05-01

1. Definitions and Scope

1.1 "Services" means the data-pipeline operations described in Schedule A, performed by the Provider on the Customer's behalf during the Term. The parties agree that any Service not listed in Schedule A is out of scope and will be governed by a separate statement of work.

2. Liability

2.3 The Provider's aggregate liability under this Agreement shall not exceed the fees paid by the Customer in the *three (3) months* immediately preceding the event giving rise to the claim, except in cases of gross negligence or willful misconduct.

5. Confidentiality

5.2 Each party shall hold the other's Confidential Information in strict confidence for a period of *five (5) years* following the termination of this Agreement, and shall use it solely for the purposes of performing under this Agreement.

7. Termination

7.1 Either party may terminate this Agreement for material breach by giving *thirty (30) days* written notice, provided the breaching party has not cured the breach within that period.